



CHAPTER xciv.

An Act to appoint new Trustees of certain lands tenements and hereditaments vested in the mayor aldermen and burgesses of the borough of Berwick-upon-Tweed to make further provisions with respect to the said lands tenements and hereditaments and for other purposes.

A.D. 1926.

[4th August 1926.]

WHEREAS by an Act passed in the year eighteen hundred and forty-three intituled "An Act for settling and establishing the rights of the resident freemen and resident widows of freemen of the borough of Berwick-upon-Tweed in the property vested in the mayor aldermen and burgesses of that borough and for other purposes" (in this Act referred to as "the Act of 1843") all the lands tenements and hereditaments mentioned and described in the First Second Third and Fourth Schedules to that Act together with the rights members and appurtenances thereto belonging (all of which lands tenements hereditaments rights members and appurtenances or so much thereof as remains vested in the mayor aldermen and burgesses of the borough of Berwick-upon-Tweed immediately prior to the appointed day are in this Act referred to as "the estate") were vested in the mayor aldermen and burgesses of that borough to hold to them and their successors for ever with and subject to such powers upon such trusts and

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926. — for such purposes as were in the Act of 1843 expressed and declared or referred to concerning the same:

And whereas it is expedient that the estate should be transferred from the Corporation and vested in the Trustees by this Act constituted and incorporated:

And whereas it is expedient that the Trustees should be empowered to sell or lease the estate or any part thereof and should be given such further powers and duties as are in this Act contained:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the *Berwick-upon-Tweed Corporation (Freemen) Act 1926.*

(2) The Act of 1843 may be cited as the *Berwick-upon-Tweed Corporation (Freemen) Act 1843.*

(3) The Act of 1843 and this Act may together be cited as the *Berwick-upon-Tweed Corporation (Freemen) Acts 1843 and 1926.*

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I. Preliminary.

Part II. Incorporation constitution and meetings of Trustees and Freemen's Committee.

Part III. Powers of Trustees and Freemen's Committee.

3. In this Act unless the subject or context otherwise requires— A.D. 1926.

“The borough” means the borough of Berwick-upon-Tweed; Interpretation.

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council of the borough;

“The town clerk” means the town clerk of the borough;

“The Trustees” means the Berwick-upon-Tweed Corporation (Freemen) Trustees by this Act incorporated;

“The Corporation Trustees” means the Trustees appointed by the Corporation;

“The Freemen Trustees” means the Trustees elected by the freemen;

“The Freemen’s Committee” means the Freemen’s Committee by this Act constituted;

“The freemen” means the freemen and the widows of freemen for the time being and from time to time on the resident roll;

“The resident roll” means the resident roll referred to in the Act of 1843;

“Non-resident freemen” means the freemen and the widows of the freemen who have been admitted to the freedom of the borough and are not for the time being on the resident roll;

“Annual rents and profits” when used in reference to the lands described in any of the schedules to the Act of 1843 means the annual rents and profits of such lands after deducting therefrom all tithe rentcharge properly chargeable upon such lands and all rates and taxes levied in respect of such lands and not payable under the provisions of this Act out of the annual rents and profits of the lands described in the Fourth Schedule to the Act of 1843;

“The appointed day” means the first day of December nineteen hundred and twenty-six.

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926.

PART II.

INCORPORATION CONSTITUTION AND MEETINGS OF
TRUSTEES AND FREEMEN'S COMMITTEE.

Incorporation of
Trustees.

4.—(1) The Trustees shall consist of ten persons of whom five not being freemen resident or non-resident shall be appointed by the Corporation and five being resident or non-resident freemen shall be elected by the freemen.

(2) The Trustees shall be a body corporate by the name of the "Berwick-upon-Tweed Corporation (Freemen) Trustees" with perpetual succession and a common seal and with power to acquire and hold lands for the purposes of their constitution without licence in mortmain and to carry this Act into execution.

Constitution of
Freemen's Committee.

5. The Freemen's Committee shall consist of nine persons to be elected by the freemen.

Appointment of
Corporation
Trustees.

6. The Corporation Trustees shall be appointed by the Corporation in the month of November in each year in such manner as the Corporation may from time to time determine the first such appointment being made in the month of November nineteen hundred and twenty-six and in the month of October in each year shall make a report to the Corporation of the proceedings of the Trustees during the preceding twelve months.

Election of
Freemen
Trustees and
Freemen's
Committee.

7.—(1) The Freemen Trustees and the Freemen's Committee shall be elected in the month of October or November in each year by the vote of the majority of the freemen present and voting at a meeting of the Freemen's Guild the first such election being held in the month of October or November nineteen hundred and twenty-six.

(2) The secretary of the Freemen's Guild shall give notice of the date and time and place of such meeting of the Freemen's Guild in each year by advertisement thereof at least seven days prior to the date of such meeting in some newspaper published in the borough or if there be no newspaper published therein then in some newspaper published in the county of Northumberland or if the Freemen's Committee so direct by notice sent by post to the last known address of each freeman and

posted at least seven days prior to the date of such meeting. A.D. 1926.

(3) If in any year the secretary of the Freemen's Guild shall fail to give such notice by the twentieth day of October the chairman of the Freemen's Committee shall summon a meeting of the Freemen's Guild to be held as soon as practicable thereafter by giving such notice in the manner aforesaid.

8. The secretary of the Freemen's Guild in the case of the first election of the Freemen Trustees and the Freemen's Committee and the Freemen's Committee in the case of every subsequent election may make and from time to time alter and amend regulations with respect to the procedure to be followed at and the conduct of such elections and every election shall be carried out in conformity with all such regulations for the time being in force. Regulations for conduct of elections.

9. An election of any person to be a Freemen Trustee or a member of the Freemen's Committee shall not be invalidated by non-compliance with any of the requirements of this Act or of any regulations made under the authority of the same unless such non-compliance affected the result of the election. As to non-compliance with regulations.

10. A certificate signed by the chairman of the Freemen's Committee that any person has been elected a Freemen Trustee or a member of the Freemen's Committee shall be prima facie evidence that the person therein referred to was so elected on the date therein mentioned and that all the requirements of this Act and of any regulations made under the authority of the same have been complied with in respect of such election. Evidence of election.

11. A Trustee or a member of the Freemen's Committee appointed or elected in the month of October or November in any year shall enter upon office on the first day of December in that year and shall go out of office on the next succeeding thirtieth day of November. Period of office.

12. A person may be elected both a Freemen Trustee and a member of the Freemen's Committee and a Trustee or a member of the Freemen's Committee going or about to go out of office shall be eligible for re-election. Trustees to be eligible for re-election.

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926.

Casual
vacancies.

13.—(1) In the event of any person appointed or elected a Trustee or a member of the Freemen's Committee dying or resigning before the end of his period of office or being declared bankrupt or compounding with his creditors or being continuously absent from all meetings of the Trustees or of the Freemen's Committee for a period of six months or being unwilling or by reason of permanent infirmity of mind or body unable to act the Corporation if such person were a Corporation Trustee or the Freemen's Committee if such person were a Freemen Trustee or a member of the Freemen's Committee may appoint some other person to hold that office in his place for the remainder of such period.

(2) A person appointed or elected to the office of Trustee who does not within one month of such appointment or election make and subscribe a declaration as in the First Schedule to this Act shall be deemed to be unwilling to act.

Declaration
on accept-
ance of
office.

14. A person appointed or elected to the office of Trustee shall not until he has made and subscribed before two other of the Trustees or their clerk a declaration as in the First Schedule to this Act act in the office except in administering the declaration.

Proceedings
not to be
invalidated.

15. No act or proceeding of the Trustees or of the Freemen's Committee shall be questioned on account of any vacancy in their body or any invalidity or defect in the appointment or election of any member thereof or on the ground that any Trustee has failed to make and subscribe a declaration as required by this Act.

Meetings of
Trustees.

16.—(1) The first meeting of the Trustees shall be held on such date in the month of December nineteen hundred and twenty-six and at such time and place as the town clerk may appoint and the town clerk shall give to each Trustee at least seven days' notice in writing of the date time and place of such meeting.

(2) The Trustees shall hold a general meeting in the month of December in each year and the accounts of the Trustees made up to the preceding thirty-first day of March and audited by a member of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors shall be submitted at each such meeting. The Trustees shall supply to the Corporation a copy of such accounts.

(3) Subject as aforesaid the Trustees may hold such meetings at such times and at such places as they may from time to time determine. A.D. 1926. —

(4) An extraordinary meeting of the Trustees shall be summoned by the chairman whenever a requisition for that purpose is addressed to him in writing by any three Trustees and if the chairman shall refuse or neglect to call a meeting within seven days after the receipt of such requisition or if there be no chairman any three Trustees may summon an extraordinary meeting.

(5) Every extraordinary meeting shall be summoned by giving at least forty-eight hours' notice in writing to each Trustee.

(6) Any notice required to be given by this section may be given by posting a prepaid letter addressed to the person to whom the notice is to be given at his last known place of abode.

(7) At all meetings of the Trustees five Trustees shall constitute a quorum.

17.—(1) The Trustees and the Freemen's Committee at their first meeting or at an adjournment thereof and thereafter as occasion may require shall respectively appoint one of their number as chairman who shall continue chairman until the next succeeding first day of December. Chairman of Trustees and Freemen's Committee.

(2) If at any meeting of the Trustees or of the Freemen's Committee the chairman be not present one of the Trustees or a member of the Freemen's Committee present at such meeting shall be appointed chairman for that meeting.

(3) In the case of an equality of votes at any meeting the chairman of the Freemen's Committee shall have and the chairman of the Trustees shall not have a second or casting vote.

18.—(1) Subject to the provisions of this section all questions arising for the determination of the Trustees shall be decided by the majority of such Trustees present and voting at a meeting. Procedure at meetings of Trustees.

(2) On any such question arising as aforesaid any three of the Freemen Trustees or any three of the Corporation Trustees present at the meeting shall have

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926. a veto that is to say in the event of such question being put to a meeting and any three of the Freemen Trustees or any three of the Corporation Trustees present at the meeting voting in the negative thereon such question shall be deemed to have been decided in the negative.

(3) If in the determination of any such question the aforesaid right of veto shall be exercised or there shall be an equality of votes the consideration of such question shall be adjourned to a meeting of the Trustees to be held within a period not exceeding twenty-one days from the date of the meeting when such question was first considered and if at such meeting in the determination of such question the aforesaid right of veto shall be exercised or there shall be an equality of votes such question shall be determined by arbitration in the manner hereinafter provided.

(4) The arbitrator shall be such person as may be agreed upon between the Corporation Trustees or any three of them and the Freemen Trustees or any three of them or failing such agreement as shall be appointed on the application of either party by the Charity Commissioners and the decision of such arbitrator shall be final and binding on the Trustees and shall be given effect to by them. The Arbitration Act 1889 shall apply to any arbitration under this section.

(5) Subject to the provisions of this Act the Trustees may make such rules for the conduct of their business as they may from time to time determine and may vary and revoke the same.

Meeting and
procedure of
Freemen's
Committee.

19.—(1) The Freemen's Committee shall hold their first meeting immediately after the conclusion of the meeting of the Freemen's Guild to be held in the month of October or November nineteen hundred and twenty-six.

(2) The Freemen's Committee shall hold a general meeting in the month of December in each year and the audited accounts of the Freemen's Committee made up to the preceding thirty-first day of March shall be submitted at each such meeting and subject thereto the Freemen's Committee may hold such meetings and at such times and places as they may from time to time determine.

(3) All questions coming before the Freeman's Committee shall be decided by the majority of the members present and voting at a meeting. A.D. 1926.
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(4) At all meetings of the Freeman's Committee three members of that committee shall constitute a quorum.

(5) Subject to the foregoing provisions of this Act the Freeman's Committee may make such rules for the conduct of their business and the summoning of their meetings as they may from time to time determine and may vary and revoke the same.

PART III.

POWERS OF TRUSTEES AND FREEMEN'S COMMITTEE.

20. As from the appointed day the estate shall be and the same is by virtue of this Act and without any conveyance or other instrument vested in the Trustees for all the estate and interest of the Corporation therein and subject to the provisions of this Act upon the trusts and for the purposes expressed declared or referred to concerning the same in the Act of 1843. Vesting of estate.

21. The Trustees may do all such acts for or in connection with the maintenance management development and improvement of the estate or any part thereof or otherwise in the execution or furtherance of the trusts and purposes aforesaid and subject to the provisions of the section of this Act of which the marginal note is "As to clerk and accountant of Trustees" may employ and pay such officers and servants as they may from time to time think fit. Management of estate.

22.—(1) The Trustees shall appoint and employ the town clerk and the treasurer or accountant of the borough for the time being as their clerk and accountant respectively Provided that in the event of the services or conduct of either or both of these officers being in the opinion of a majority of the Trustees unsatisfactory the Trustees may provisionally suspend such officer or officers and shall then forthwith refer the question as to whether such officer or officers shall be dismissed or reinstated by the Trustees to the decision of an arbitrator to be appointed by the Minister of Health and the decision of As to clerk and accountant of Trustees.

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926. — such arbitrator shall be final and binding on the Trustees and shall forthwith be given effect to by them.

(2) In the event of the clerk or accountant being dismissed by the Trustees in accordance with the foregoing provisions of this section the Trustees may thereafter until such time as a person other than the person so dismissed is appointed to the office of town clerk or treasurer or accountant of the borough appoint and employ as their clerk or accountant as the case may be such person as they may from time to time think fit and during that period the foregoing provisions of this section with respect to the clerk or accountant as the case may be shall be suspended.

(3) The Trustees shall pay adequate salaries to their clerk and accountant.

Power to
sell or lease
estate.

23.—(1) The Trustees may sell or lease the estate or any part thereof freed and discharged from all trusts affecting the same upon such terms subject to such conditions and for such consideration as they may think fit.

(2) On any such sale or lease of the estate or any part thereof a certificate under the common seal of the Trustees to the effect that they are entitled so to dispose of the same shall as between the Trustees or any one claiming through or under them on the one hand and any purchaser or lessee on the other hand be conclusive evidence in favour of such purchaser or lessee of the facts therein stated and that in respect of such sale or lease all the requirements of this Act have been complied with.

(3) On any such sale or lease a receipt under the common seal of the Trustees for any purchase money premium fine or other capital money shall be a sufficient discharge for the same and shall effectually exonerate the person paying the same from seeing to the application or being answerable for any loss or mis-application thereof. A receipt under the hand of the treasurer or other duly authorised official of the Trustees shall be a sufficient discharge for any rent or other payment in the nature of income or revenue.

(4) Any premium fine or other capital moneys received by the Trustees as the consideration or part of the consideration for any such lease or the renewal

thereof shall be treated by them as purchase money on the sale of land and applied accordingly. A.D. 1926.

(5) Any expenses incurred by the Trustees in connection with any such sale or lease shall be paid out of the purchase money capital or other payments received by the Trustees in respect thereof.

(6) So far as regards lands in any of the four schedules to the Act of 1843 the power conferred by this section to sell and also the power to lease so far as respects leases for a longer term than twenty-one years and the power to borrow conferred by section 31 hereinafter contained shall be exerciseable only with the consent of the Charity Commissioners or by such other consent or order as would if this Act had not been passed have been requisite if the transaction were being effected under an instrument creating a charitable trust not being an Act of Parliament.

24.—(1) On any such sale as aforesaid of any parts of the estate described in the First and Second Schedules to the Act of 1843 the net purchase money received by the Trustees shall be divided by them into two parts to be determined in accordance with the rules contained in the Second Schedule to this Act and to be called respectively “the basic value moneys” and “the improved value moneys.” Application of purchase money.

(2) All such basic value moneys received by the Trustees shall be invested by them and the interest dividends and other annual proceeds thereof shall be applied by them in the same manner as the annual rents and profits of the lands in respect of which such moneys were received are applicable under the provisions of the Act of 1843 as amended by this Act.

(3) One-third of all such improved value moneys received by the Trustees shall be paid to the Freeman's Committee and the remaining two-thirds shall be treated as basic value moneys and applied accordingly.

(4) On any such sale as aforesaid of any part of the estate described in the Third Schedule to the Act of 1843 the net purchase money received by the Trustees shall until the sum of four hundred pounds hereinafter mentioned shall be provided for also be divided into two parts to be determined in accordance with the rules contained in the Second Schedule to this Act and to be called respectively basic value moneys and improved

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926. value moneys All such last-mentioned improved value moneys shall be accumulated by them until the improved value moneys derived from the sale of lands in the said schedule amount to the sum of four hundred pounds and thereupon the said sum of four hundred pounds shall be paid to the Corporation All such last-mentioned basic value moneys and after the said sum of four hundred pounds has been provided for as aforesaid the whole of such last-mentioned net purchase money shall be invested and the interest dividends and other annual proceeds shall be applied by the Trustees in the same manner as the annual rents and profits of the lands in respect of which such moneys were received are applicable under the provisions of the Act of 1843 as amended by this Act.

(5) The said sum of four hundred pounds shall be invested by the Corporation and the interest dividends and other annual proceeds thereof shall be applied by them in such manner as they think fit towards the establishment of a bursary or bursaries for the benefit of the children of persons resident in the borough who are not freemen.

(6) On any such sale of any of the lands described in the Fourth Schedule to the Act of 1843 the net purchase money received by the Trustees shall be invested by them and the interest dividends and other annual proceeds thereof shall be applied by them in the same manner as the annual rents and profits of the lands in respect of which such moneys were received are applicable under the provisions of the Act of 1843 as amended by this Act.

(7) On any such sale as aforesaid the Trustees shall apply the purchase money in repayment of all borrowed moneys charged upon and having as their only or primary security the lands comprised in the same schedule to the Act of 1843 as the lands in respect of which such purchase money is received and in addition in the case of a sale of any of the lands described in the Fourth Schedule to the Act of 1843 of the principal moneys remaining due upon or in respect of the bonds referred to in or created under the Act of 1843 and in this section the expression "net purchase money" means the purchase money received on any such sale after deducting therefrom any expenses incurred by the Trustees in connection therewith and any sums applied by the Trustees in repayment as aforesaid.

(8) All moneys paid under subsection (3) of this section to the Freeman's Committee shall be forthwith remitted by them to the Official Trustees of Charitable Funds to be invested in the names of the Official Trustees. A.D. 1926.
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25. As from the appointed day the right of the freemen or any of them to possess and enjoy the lands described in the First Schedule to the Act of 1843 shall cease and determine and the Trustees shall have power forthwith to let or lease the same. Release of lands described in First Schedule to Act of 1843.

26. The annual rents and profits of the lands described in the First and Second Schedules to the Act of 1843 shall be applied by the Trustees in accordance with the provisions contained in the Third Schedule to this Act. Trusts of lands described in First and Second Schedules to Act of 1843.

27.—(1) The Trustees shall pay out of the annual rents and profits of the lands described in the Third Schedule to the Act of 1843 any amount by which the annual rents and profits of the lands described in the Fourth Schedule to that Act shall be insufficient to meet the payments (other than the payment of any surplus to the Corporation) required to be made by the Trustees out of such last-mentioned annual rents and profits. Trusts of lands described in Third Schedule to Act of 1843

(2) Subject as aforesaid the Trustees shall pay to the Corporation so much of such first-mentioned annual rents and profits as shall be required in accordance with the provisions of section 13 of the Act of 1843 to be paid or applied in or towards the payment of the salaries and other lawful expenses in that section referred to and the Corporation shall pay and apply the same accordingly.

(3) The remainder of such first-mentioned annual rents and profits shall be paid to the Freeman's Committee Provided that for the purpose of meeting any future outgoings in respect of the said interest salaries or other lawful expenses or any future deficiency in the said rents and profits the Trustees shall retain such remainder of the said rents and profits until the sum so retained amounts to three hundred pounds and if at any time the said sum so retained is reduced below the said amount the Trustees shall before making any further payments to the Freeman's Committee retain

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926. — sufficient of the said rents and profits to restore the said sum to the said amount.

Trusts of
lands de-
scribed in
Fourth
Schedule to
Act of 1843.

28. The Trustees shall pay out of the annual rents and profits of the lands described in the Fourth Schedule to the Act of 1843 the costs charges and expenses of the Trustees as hereinafter provided all poor rates borough rates general district rates land tax and income tax (including any future rates or taxes levied in lieu of any of the aforesaid rates or taxes) payable by the Trustees all such other charges as are properly chargeable upon the said lands under the Act of 1843 including such sums as may be required to answer the charitable trusts and payments referred to in the Sixth Schedule to that Act and to meet the interest on all the lawful debts chargeable upon the estate at the passing of this Act and which may hereafter be charged upon the said lands in accordance with the provisions of this Act and subject thereto shall pay the surplus (if any) of such annual rents and profits to the Corporation and the Corporation shall pay and apply the same in the manner provided by section 15 of the Act of 1843.

Application
of moneys
by Free-
men's Com-
mittee.

29. The Freeman's Committee shall apply all moneys received by them from the Trustees in accordance with the provisions contained in the Fourth Schedule to this Act.

Saving for
scheme of
Board of
Education.

30. The yearly sum of four hundred and fifty pounds referred to in the Sixth Schedule to the Act of 1843 and constituting the Corporation Academy Foundation as now regulated by a scheme of the Board of Education of the eleventh day of July nineteen hundred and twenty-two shall continue to be payable to the Corporation as trustees and nothing in this Act shall affect the provisions of that scheme.

Power to
borrow.

31. The Trustees may borrow at interest on the security of the estate or any part thereof for any of the purposes set out in the first column of the following table such sums as they may from time to time determine and for that purpose may mortgage or charge the estate or any part thereof Provided that all sums borrowed for any of the said purposes shall be chargeable upon and the interest or other payments due in respect thereof shall be

[16 & 17 GEO. 5.] *Berwick-upon-Tweed* [Ch. xciv.]
Corporation (Freemen) Act, 1926.

payable out of the annual rents and profits of the lands described in the second column of the said table (that is to say):—

A.D. 1926.
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Purpose.	Lands chargeable.
(a) For repaying to the Corporation the costs charges and expenses of this Act.	The lands described in the Third and Fourth Schedules to the Act of 1843.
(b) For paying off the lawful debts chargeable upon the estate at the passing of this Act.	The lands described in the Third and Fourth Schedules to the Act of 1843.
(c) For carrying out improvements to lands described in any of the schedules to the Act of 1843.	The lands described in that schedule.

Provided that in the case of sums borrowed for the purposes (a) and (b) hereinbefore mentioned the lands described in the said Fourth Schedule shall be the primary security and the lands described in the said Third Schedule shall be the collateral security.

32. A receipt signed by any two members of the Freeman's Committee or an official of that committee authorised for that purpose or by the treasurer of the borough for any moneys paid by the Trustees to the Freeman's Committee or the Corporation respectively shall be a sufficient discharge for the same and the Trustees shall not be bound to see to the application or be answerable for any loss or misapplication thereof.

As to signature of receipts.

33. All investments authorised by this Act shall be made by the body or persons making the same in such investments being investments for the time being authorised by law as investments for trust money as they may from time to time think fit.

As to investments.

34. Notwithstanding anything contained in this Act the resident roll shall be kept and prepared by the Trustees in the same manner as it would have been kept and prepared if this Act had not been passed.

Resident roll.

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926.

Existing
agreements
and pending
actions.

35.—(1) All contracts deeds bonds leases agreements and other instruments at or before the appointed day entered into by or with the Corporation in respect of the estate or any part thereof shall be of as full force and effect against or in favour of the Trustees as fully and effectually as if instead of the Corporation the Trustees had been parties thereto.

(2) If upon the appointed day any action or proceeding shall be pending or existing by or against the Corporation in respect of the estate or any part thereof the same shall not be in anywise prejudicially affected by reason of the passing of this Act but may be continued prosecuted or enforced by or against the Trustees.

Power to
sell or lease
lands to
Corporation.

36. Nothing contained in this Act shall prevent the Corporation taking on lease or purchasing any lands forming any part of the estate from the Trustees or prevent the Trustees leasing or selling any such lands to the Corporation.

As to incid-
ence of
certain
charges.

37. If in any year the rates taxes and other impositions charged on any of the lands described in the First Second or Third Schedules to the Act of 1843 and the costs charges or expenses incurred by the Trustees in connection with the management maintenance development improvement and administration of such lands shall by reason or in consequence of the development and improvement thereof under the powers of this Act be increased above the average annual amount of such rates taxes impositions costs charges and expenses in respect of such lands during the three years immediately before the appointed day the amount of such increase shall be paid out of the annual rents and profits of the lands described in that one of the said schedules which comprises the lands in respect of which such increase occurs.

Expenses of
Trustees.

38. Subject to the provisions of the last preceding section all costs charges and expenses incurred by the Trustees in connection with the management maintenance development improvement and administration of the estate or otherwise in carrying into execution the provisions of this Act and the Act of 1843 and not otherwise provided for by this Act shall be paid out of the annual rents and profits of the lands described in the Fourth Schedule to the Act of 1843.

39. For the removal of doubts it is hereby declared that the Corporation shall be deemed always to have had power to grant such leases of the estate or any part thereof and for such consideration and upon such terms as they may from time to time have thought fit and all such leases granted by the Corporation shall be valid and binding upon the parties thereto and their successors in title.

A.D. 1926.
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Existing leases of the estate.

40. Any question arising between the Corporation and the Trustees as to the rights of the Corporation under the provisions of this Act shall be determined by arbitration under the Arbitration Act 1889.

Arbitration between Corporation and Trustees.

41. Nothing contained in this Act shall derogate from or prejudice any rights powers or privileges of the Corporation save so far as may be expressly provided by this Act.

Saving rights of Corporation.

42. The costs charges and expenses of the Corporation and of the freemen preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation but the Trustees shall repay to the Corporation the amount of any such costs charges and expenses so paid by them.

Costs of Act.

A.D. 1926.

The SCHEDULES referred to in the
foregoing Act.

FIRST SCHEDULE.

FORM OF DECLARATION ON ACCEPTANCE OF THE OFFICE OF TRUSTEE.

I A.B. having been [appointed] [elected] a Trustee hereby declare that I take the said office upon myself and will duly and faithfully fulfil the duties thereof according to the best of my judgment and ability.

SECOND SCHEDULE.

RULES FOR DETERMINING BASIC VALUE MONEYS AND IMPROVED VALUE MONEYS ON SALE OF LANDS DESCRIBED IN THE FIRST--SECOND AND THIRD SCHEDULES TO THE ACT OF 1843.

1. So much of the net purchase money received by the Trustees on a sale of the lands described in the First and Second Schedules to the Act of 1843 and also in the Third Schedule to the said Act where necessary for the purposes of subsection (4) of the section of this Act whereof the marginal note is "Application of purchase money" or any part thereof as is equal to the net annual rental thereof at the time of such sale multiplied by twenty-two shall be deemed to be the basic value moneys.

2. The remainder (if any) of such purchase money shall be deemed to be the improved value moneys.

3. The net annual rental shall be ascertained by deducting from the gross annual rental the tithe rentcharges and other outgoings (if any) chargeable thereon and a reasonable allowance for repairs.

4. The net annual rental of any part of the estate which is not let or leased at the date of the sale thereof shall be deemed to be such net amount as might reasonably be expected to be obtained therefrom if the same were let or leased.

[Ch. xciv.] *Berwick-upon-Tweed* [16 & 17 GEO. 5.]
Corporation (Freemen) Act, 1926.

A.D. 1926.
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2. Any annual rents and profits received by the Freeman's Committee from the Trustees shall subject to the provisions of the next succeeding paragraph of this schedule be paid to such of the freemen as would be entitled to the said annual rents and profits of the lands described in the Third Schedule to the Act of 1843 under the provisions of that Act.

3. The Freeman's Committee may form a reserve fund by appropriating thereto and investing such proportion of the moneys or annual rents and profits referred to in paragraph 2 of this schedule as they may from time to time determine.

4. The Freeman's Committee may apply the reserve fund or any part thereof or the interest dividends or other annual proceeds arising therefrom in such manner for the protection and promotion of the general interests of the freemen as they from time to time determine or may apply the said interest dividends or other annual proceeds in accordance with the provisions of paragraph 2 of this schedule or for any charitable purpose for the benefit of freemen including the relief of necessitous freemen or members of their families.

5. Any investments made by the Freeman's Committee may be made in the names of the whole number of the members thereof or such less number not being less than three as they may from time to time determine.

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5. Any question as to how much of any purchase money is to be deemed to be basic value moneys and any other question arising under or as to the meaning of any of the aforesaid rules shall be settled on the application of any three of the Trustees by the Charity Commissioners or by an arbitrator appointed by them. A.D. 1926.

THIRD SCHEDULE.

PROVISIONS WITH RESPECT TO THE APPLICATION OF THE ANNUAL RENTS AND PROFITS OF THE LANDS DESCRIBED IN THE FIRST AND SECOND SCHEDULES TO THE ACT OF 1843.

1. The annual rents and profits of the said lands shall be divided annually by the Trustees into four hundred and ninety-six lots or portions (representing the meadows and stints in lieu of meadows comprised in the said First and Second Schedules) and the Trustees shall allocate and pay such lots or portions to and amongst the freemen according to seniority in the same manner as heretofore has been customary but without the individual privilege of choosing and changing.

2. The division of such rents and profits as aforesaid shall be made in proportions equivalent or as nearly equivalent as may be practicable to the rents of the respective meadows and stints in lieu of meadows on the appointed day.

FOURTH SCHEDULE.

PROVISIONS WITH RESPECT TO THE APPLICATION OF MONEYS RECEIVED BY THE FREEMEN'S COMMITTEE.

1. The interest dividends or other annual proceeds of all investments of improved value moneys received in respect of any of the land described in the First and Second Schedules to the Act of 1843 and payable to the Freemen's Committee shall be paid to or received by the Freemen's Committee and shall be applied by them towards such charitable purposes for the benefit of the freemen and widows of freemen or either of such classes in such manner as the Charity Commissioners shall in the exercise of their ordinary jurisdiction by any scheme from time to time determine.